KIPI Centre, Kabarsiran Avenue,
Off Waiyaki Way, Lavington
P.O. Box 51648-00200, Nairobi.
Tel: 020-6002210/11, 6006326/29/36
Mobile: 0702002020, 0736002020
E-mail: info@kipi.go.ke.
Web: www.kipi.go.ke

Date: **04/02/2026**

THE INDUSTRIAL PROPERTY ACT, 2001

INVITATION TO CORRECT DEFECTS IN UTILITY MODEL APPLICATION
(Section 41(8) and Regulation 24(4)

To: DANIEL KIMANI WACUKA, 278-00232 RUIRU		Applicant's or agent's file reference: Applicant: **ZENITY LIMITED DANIEL KIMANI WACUKA,** **P.O BOX 100-01000, Kenya and 278-00232 RUIRU, Kenya**
Application No.: **KE/U/2026/3516**	Filing Date: **27/01/2026**	**Priority**
Date of invitation: **04/02/2026**	RESPONSE DUE within **90** days from the date of invitation.	
Title of the invention **SWIFTSEND**		

The applicant is hereby invited, within the time limit indicated above, to correct the defects specified on the attached formality examination report

If the applicant is unable to meet the given time limit, an extension of time not exceeding 60 days may be granted upon request on form IP 7 and payment of the requisite fee of Ksh. 1000 for local applicants or US$50 for foreign applicants.

HOW TO CORRECT THE DEFECTS?- REGULATION 20(5)

Correction must be in the form of a letter of explanation accompanied by replacement pages, and the letter of explanation must draw attention to the difference between any new pages and the pages being replaced. The letter may also specify any pages that are to be removed from the application without being replaced.
A request to amend the application should be in Form IP 5 while a request to amend a name, address or other contact information should be in Form IP 6. **Note** that proof may be required when amending a name, address or other contact information.

ATTENTION
Failure to correct the defects will result in the application being rejected as per section 41(8).

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Hillary Korir Kiprotich
FOR MANAGING DIRECTOR

FORMALITY EXAMINATION REPORT
(Industrial Property Act, Section 41(7))

Patent Application No.
KE/U/2026/3516

The application has been found to contain the following defects:

1.0 The request (Form IP 3) – Section 34 (1) (a) and Regulation 12

1.1 As to indications concerning the applicant and the inventor, the request:
- ☐ does not properly indicate the applicant's **name** *(specify)*:
- ☐ does not indicate the applicant's **address.**
- ☐ does not properly indicate the applicant's **address** *(specify)*:
- ☐ does not indicate the applicant's **nationality**
- ☐ does not indicate the applicant's **residence**
- ☐ contains more than one applicant, but the request does not set out a single address at which all the applicants can be contacted.
- ☐ does not indicate the inventor's name and/or address.

1.2 ☐ the applicant is not the inventor and the request is not accompanied by a statement justifying the applicants right to the patent (Form IP4).

1.3 ☐ The request does not indicate the drawing which should accompany the abstract when published.

1.4 As to **signature** of the application, the request
- ☒ **is not signed by the applicant or, if there is more than one applicant, by at least one of them**
- ☐ is signed by what appears to be an agent but:
  - ☐ the application is not accompanied by a form of appointment of the agent (Form IP 39).
  - ☐ the fee for appointment of agent is not paid ☐Ksh 1,000 ☐ US $ 50
  - ☐ the form of appointment of agent accompanying the application is not signed by the applicant/all the applicants
  - ☐ the agent is not admitted to practice before the Institute – Section 34(2).

1.5. The **title** of the invention:
- a. ☐ is not indicated in the request
- b. ☐ is not indicated in the description
- c. ☒ **as appearing in the request is not identical with the title in the description.**
- d. ☐ is not short and precise

1.6 Unnecessary matter included in the request
☐ the request includes unnecessary matter that is not provided for or that is not required under the Act or the Regulations and the applicant is required to delete the following (*specify):*

2.0 The description of the invention - Section 34(1)(b) and Regulation 13

2.1 The description
- ☐ does not State the title of the invention.
- ☐ does not specify the technical field to which the invention relates.
- ☐ does not indicate the background art of the invention
- ☐ does not describe how the invention is industrially applicable.

3.0 The claims- Section 34(1) (c) and Regulation 14

3.1 The claims
- ☐ are not set in two parts (i.e. one part defining the prior art and the other part defining features for which protection is sought).
- ☒ **are not numbered consecutively in Arabic numbers.**
- ☐ are not Grouped together in the most appropriate way.
- ☐ make reference to the description or drawings
- ☐ include drawings

4.0 Drawings – Section 34(1) (d) and Regulation 15

With regard to the presentation of the drawings, the physical requirements are not complied with as detailed below:

4.1 ☒ **the minimum margins on the sheets are not as prescribed (i.e. top: 2.5 cm; left side: 2.5cm; right side: 1.5cm; bottom: 1.0 cm)**

4.2 ☐ The pages containing the drawings should not be framed.

4.3 The drawings:
- ☐ Should not be coloured.

☒ **are not executed in durable black color; the lines are not uniformly thick and well-defined**
☐ Contain lines drafted without the aid of drafting instruments.
☐ would not be properly distinguishable in reduced reproduction
☐ contain scales not represented graphically
☐ contain cross-sections not properly hatched
☐ contain numbers and letters of height less than 0.32 cm
☐ Contain numbers and letters which are not circled or within brackets or inverted commas.
☐ are not restricted to reference signs mentioned in the description
☐ do not contain reference signs that are mentioned in the description
☐ contain the same feature denoted by different reference signs
☐contain letters not conforming to the Latin, and where customary, the Greek alphabet
☐contain figures which are not properly arranged and clearly separated
☐contain different figures not numbered in consecutive Arabic numerals
☐contain different figures not numbered independently of the numbering of the sheets
☐are not arranged in an upright position, clearly separated from one another
☒**the sheets are not numbered in consecutive Arabic numerals (e.g. 1/3, 2/3, 3/3)**
☐contain unnecessary text matter

5.0 The abstract - Section 34(1)(e) and Regulation 16

5.1 ☐ the application does not contain an abstract
5.1 ☐ the abstract
☐ contains more than 150 words
☐ does not include the title of the invention
☐ does not include a summary of the description of the invention
☐ does not indicate the technical field to which the invention relates and the principal use(s) of the invention.
☒ **includes statements about the merits or value of the invention or about uses that are speculative.**

6.0 General requirements- Regulation 17

With regard to the presentation of the application, the following requirements are not complied with:

	Request	Description	Claims	drawings	Abstract
☐ Parts of the application are not in English.	☐	☐	☐	☐	☐
☐ pages are not A4 size (29.7cm x 21cm)	☐	☐	☐	☐	☐
☐ pages are not used in the upright position (oriented in portrait)	☐	☐	☐	☐	☐
☐ the margins are not as prescribed(i.e. top: 2cm; left side: 2.5cm; right side: 2cm; bottom: 2cm)		☐	☐		☐
☐ The margins are not completely blank	☐	☐	☐	☐	☐
☐ one side of the page is not left unused		☐	☐	☐	☐
☐ the pages are not bound so that they can be easily separated and rejoined	☐	☐	☐	☐	☐
☐ pages are not free from creases, cracks, folds	☐	☐	☐	☐	☐
☐ the sheets do not admit of direct reproduction	☐	☐	☐	☐	☐
☐ The elements do not start on a new page	☐	☐	☐	☐	☐
☐ The application is not submitted in triplicate (3 copies).	☐	☐	☐	☐	☐
☒ **the pages of the, (a) the request (b) description, claims and abstract and (c) the drawings, are not numbered as a separate series in Arabic numerals.**	☒	☒			☒
☒ **Every fifth line not numbered, with the number to the left of the line.**		☒	☒		
☐ the text matter is not typed or printed		☐	☐		☐
☐ the text matter on the sheets is not in dark, indelible color		☐	☐		☐
☐ the line spacing is not 1½-spaced		☐	☐		☐
☐ the characters in the text matter on the sheets are less than 0.20 cm high in capital letters		☐	☐		☐
☐ Parts not legible when photocopied.	☐	☐	☐		☐
☐ text of the request not dark and indelible.	☐				
☐ pages contain over-writings, insertion between lines, deletions, alterations	☐	☐	☐	☐	☐

☐ terms/signs/symbol not used consistently throughout the application	☐	☐	☐	☐	☐
☐ metric units not used.	☐	☐	☐	☐	☐
☐ the element contains drawings	☐	☐	☐		☐
☐ pages contain photocopy marks	☐	☐	☐	☐	☐

7.0 Fees – Section 41(7)(e)

☐ Application fee
- ☐ Has not been paid and a request for waiver of the fee is not submitted.
- ☐ has not been fully paid

☐ Excess claims fee, for each claim in excess of ten has not been paid. Total amount due is ……

☐ Amendment fee of ☐Ksh 2,000 ☐US$ has not been paid.

☐ Fee for filing a final specification has not been paid/fully. Amount due is ☐ Ksh 3000 ☐US$ 150

8.0 Other requirements

8.1 Priority claim - Section 37(1) and Regulation 21.

☐The application contains a declaration of priority, however:
- ☐ the date, number and /or country of earlier application is/are not indicated
- ☐ the international patent classification symbol is not included and neither is a statement included to the effect that no such symbol has been assigned.
- ☐ the date of priority given is incorrect/outside the 12 months priority period.
- ☐ a certified copy of the earlier application is not furnished.

8.2 Information concerning corresponding foreign application/grants – Section 38.

☐The applicant is hereby requested to furnish:
- ☐ Copies of any communication of search or examination results in respect of the foreign application.
- ☐ Copy of patent granted on the foreign application
- ☐ copy of any final decision rejecting the foreign application

8.4 Patents relating to living matter – Section 29 and Regulation 11

☐ the invention claimed involves use of a micro-organism, and
- ☐ The depository institution and the file number of the culture deposit are not stated in the application. (Note that the recognized depository Institutions are the Kenya Agricultural Research Institute and the Kenya Medical Research Institute).

Further observations (if necessary):

Examined by

……. Date: **04/02/2026**

Hillary Korir Kiprotich